

2:00 PM LINE 3

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.  
SETH TAYLOR

A ROBERT ROSIN

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**Plaintiff Royal Glass Company, Inc.'s Motion for Leave to File a Name Correction Amendment**

**TENTATIVE RULING:**

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For the reasons stated below, Plaintiff's motion for leave to amend is **GRANTED**.

Plaintiff's requests for judicial notice are **GRANTED**, except as to "Fact Two" and "Fact Three," which impermissibly ask the Court to take judicial notice of, respectively, the absence of a public record and legal conclusions asserted from public records.

The Court declines to rule on Defendant's evidentiary objections because the challenged evidence is not material to disposition of this motion.

**BACKGROUND**

On April 2, 2024, Plaintiff Royal Glass recorded its original mechanic's lien, naming "BMR-Gateway of Pacific II LLC" as the owner or reputed owner. (RJN, Ex. A, Royal Glass Complaint, ¶ 28 & Ex. 3.) Plaintiff recorded an amended mechanic's lien on June 28, 2024, naming "BMR-700 GATEWAY, LP," "BMR-750 800 850 GATEWAY LP," and "BMR-Gateway of Pacific II LLC" as owners or reputed owners. (Id., ¶ 29 & Ex. 4.)

On June 28, 2024, Plaintiff filed its Complaint to foreclose a mechanic's lien in the amount of \$233,536 for unpaid supply and installation of exterior glass at the project commonly known as "SmartLabs." (RJN, Ex. A, Complaint.) The Complaint named BMR-750, 800, 850 Gateway LP and BMR Gateway of Pacific II LP as defendants but did not expressly name BMR Gateway of Pacific II LLC. The Complaint nevertheless attached and incorporated the original and amended mechanic's liens, which identify BMR Gateway of Pacific II LLC as an owner or reputed owner of the property. (Id., ¶¶ 28-29 & Exs. 3-4.)

On April 14, 2025, through counsel, Defendant BMR Gateway of Pacific II LLC ("Defendant LLC") signed a Notice and Acknowledgment of Receipt of Summons identifying itself as "BMR-Gateway of Pacific II, LLC (erroneously sued as BMR Gateway of the Pacific II, LP)." (RJN, Ex. H, Proof of Service and Notice and Acknowledgment of Receipt, § 3(b).)

On May 14, 2026, Defendant LLC filed an Answer to Plaintiff's Complaint identifying itself as "Defendant BMR-GATEWAY OF PACIFIC II LLC (erroneously sued herein as BMR-750, 800, 850 Gateway LP and BMR Gateway of Pacific II, LP)." (RJN, Ex. I, Defendant LLC's Answer.)

In this consolidated action, Plaintiff Royal Glass Company, Inc. now moves for leave to amend its Complaint to correct the failure to expressly name BMR Gateway of Pacific II LLC as a defendant.

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**DISCUSSION**

Plaintiff argues that its failure to include BMR Gateway of Pacific II LLC ("Defendant LLC") in the caption was an inadvertent misnomer and seeks leave under Code of Civil Procedure section 473, subdivision (a)(1), to correct that mistake. Defendant LLC argues the omission is not a mere misnomer and that the statute of limitations bars Plaintiff from adding Defendant LLC as a different entity to the mechanic's-lien foreclosure claim.

Code of Civil Procedure section 473, subdivision (a)(1), provides that the Court may, in furtherance of justice and on proper terms, allow amendment of a pleading "by correcting a mistake in the name of a party."

Whether an amendment after expiration of the limitations period merely corrects a party's description or instead substitutes a new party depends on whether the error is a misnomer or defect in description, as opposed to an entire change of parties. (*Hawkins v. Pacific Coast Building Products, Inc.* (2004) 124 Cal.App.4th 1497, 1503.)

When only one party or entity is involved, errors in the party's name or status may generally be corrected. When different individuals or entities are involved, courts scrutinize the amendment more closely to determine whether it would actually substitute a new party. (See *Thompson v. Palmer Corp.* (1956) 138 Cal.App.2d 387, 390; see also Cal. Practice Guide: Civil Procedure Before Trial, Statutes of Limitations, ch. 8-B, Amendments Correcting Misnomers, § 8:140.)

Here, the Court is inclined to view the omission of Defendant LLC from the Complaint as a misnomer. Plaintiff's original and amended mechanic's liens identified Defendant LLC as an owner or reputed owner of the property, and those liens were attached to and incorporated into the Complaint. (RJN, Ex. A, Complaint, ¶¶ 28-29 & Exs. 3-4.) The record further reflects that BMR-Gateway of Pacific II LP converted to BMR-Gateway of Pacific II LLC on December 21, 2022. (RJN, Ex. J, Bergschneider Decl. in Support of Defendant LLC's Motion for Summary Adjudication, ¶ 5 & Ex. D.) These are not alleged to be two entities operating separately and concurrently during the relevant period. The circumstances therefore support the conclusion that Plaintiff intended to proceed against the BMR ownership entity identified in the liens but failed to state Defendant LLC's current name expressly in the caption.

The Court need not rest solely on the misnomer characterization. Even if the omission were viewed as more than a simple misnomer, Defendant LLC's own appearance and participation under the designation "erroneously sued" weigh strongly against permitting it to invoke the limitations period to defeat the requested amendment.

California authority recognizes circumstances in which an amendment changing a defendant's name may relate back where the plaintiff intended to sue the proper defendant under an erroneous designation and the intended defendant or closely related entities appeared or acted in a manner that allowed the mistake to persist. (See *Cuadros v. Superior Court (Budget Rent-A-Car Systems, Inc.)* (1992) 6 Cal.App.4th 671, 676-678; *Prince v. Jensen Motors, Inc.* (1983) 139 Cal.App.3d 653, 655-656; *Omega Video Inc. v. Superior Court (Robert Bosch Corp.)* (1983) 146 Cal.App.3d 470, 480-481.)

In *Cuadros*, the plaintiff mistakenly named Budget Rent-A-Car Systems, Inc. and KH Group, doing business as Budget Rent-A-Car of Santa Monica, rather than the proper Budget entity. The named entities answered and participated in the litigation for years without correcting the plaintiff's mistake. The Court of Appeal held that, given the strikingly similar names, common ownership, common address, and litigation conduct, the defendants were estopped from opposing an amendment naming the proper defendant after expiration of the limitations period. (*Cuadros*, supra, 6 Cal.App.4th at pp. 676-678.)

The circumstances here are comparable in material respects. The LLC and LP have strikingly similar names, each has been identified in the record as an owner or reputed owner of the property, and the Secretary of State filings submitted for judicial notice list the same corporate office at 17190 Bernardo Center Drive, San Diego, California. (RJN, Exs. E-G.) Those circumstances support a finding that Plaintiff's naming error was excusable.

Unlike Cuadros, Defendant LLC did not remain silent about its identity. It appeared and identified itself in the Notice and Acknowledgment of Receipt and in its Answer as "BMR-Gateway of Pacific II LLC (erroneously sued as BMR-Gateway of Pacific II LP)." That distinction does not require denial of leave to amend. By accepting service, answering, and litigating under the "erroneously sued" designation, Defendant LLC demonstrated actual notice that it was the BMR entity Plaintiff intended to charge. Under the circumstances, allowing Defendant LLC to rely on the naming error now would elevate form over the merits despite its actual participation in the action.

Defendant LLC argues that amendment would prejudice it by eliminating a limitations defense. The record, however, reflects that Defendant LLC had actual notice of the claims and has had a full opportunity to participate in the litigation. On this record, Defendant LLC has not shown cognizable prejudice from correction of the naming error.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff Royal Glass shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 4

24-CIV-03310

SCHNEIDER ELECTRIC BUILDINGS AMERICAS, INC. VS. CALIFORNIA UNITED MECHANICAL, INC., ET AL

SCHNEIDER ELECTRIC BUILDINGS AMERICAS, INC.  
CALIFORNIA UNITED MECHANICAL, INC.

KEVIN T CAULEY  
EMMA B LLOYD

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**Plaintiff's Motion for Leave to File a DOE Amendment**

**TENTATIVE RULING:**

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For the following reasons, Plaintiff Schneider Electric Buildings Americas, Inc.'s motion for leave to file a Doe amendment substituting BMR-Gateway of Pacific II LLC, f/k/a BMR-Gateway of Pacific II LP, f/k/a BMR-750, 800, 850 Gateway LP, for Doe 6 is **GRANTED**.

**LEGAL STANDARD**

Code of Civil Procedure section 473, subdivision (a)(1), authorizes the Court, in furtherance of justice and on proper terms, to permit amendment of a pleading. Section 576 similarly permits amendment of a pleading at any time before or after commencement of trial. A motion for leave to amend is also governed by California Rules of Court, rule 3.1324. Judicial policy favors liberal allowance of amendments so that disputed matters may be resolved in the same action. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047-1048; *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) Even where delay is asserted, denial of leave to amend is generally improper absent prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Courts also ordinarily do not determine the legal sufficiency of a proposed amended pleading on a motion for leave to amend; the preferred practice is to permit the amendment and allow the opposing party to challenge the pleading by demurrer, motion for judgment on the pleadings, or another appropriate procedure. (*Kittredge, supra*, 213 Cal.App.3d at p. 1048.)

**DISCUSSION**

Plaintiff's original complaint named Doe defendants, and there remain disputed issues concerning Plaintiff's actual knowledge of BMR's identity when the action was commenced, as well as the legal effect of the undisputed entity conversion history. (See *Grinnell Fire Protection Systems Co. v. American Savings & Loan Assn.* (1986) 183 Cal.App.3d 352.) The Court does **not**, by granting leave to amend, determine that the amendment relates back to the filing of the original complaint, that Plaintiff satisfied Civil Code section 8460, or that the mechanic's lien is otherwise enforceable. BMR's defenses under Civil Code section 8460, Code of Civil Procedure section 474, the statute of limitations, and its pending motion for summary adjudication are expressly preserved. BMR's general appearance establishes that it became a party to the action, but the Court does not determine on this motion the date to which claims against BMR relate back for limitations purposes. (See *Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135.)

California law favors liberal amendment of pleadings, and on the present record the Court cannot conclude that the proposed amendment is futile as a matter of law.